

**Resolution Agreement**  
**OCR Complaint #05-23-2190**  
**Purdue University Global**

Purdue University Global (University) submits the following resolution agreement (Agreement) to the U.S. Department of Education, Office for Civil Rights (OCR), to resolve OCR complaint #05-23-2190 and to ensure its compliance with Section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and its implementing regulation, at 34 C.F.R. Part 104, and Title II of the Americans with Disabilities Act of 1990 (ADA), 42 U.S.C. §§ 12131– 12134, and its implementing regulation, at 28 C.F.R. Part 35, with respect to the issues raised in the complaint.

1. By October 6, 2023, the University will provide written notification and acknowledgment request to all faculty to ensure they are aware of their obligations to provide academic adjustments for students with disabilities, including by adding any extra time required for students with disabilities on quizzes or exams offered through third-party testing portals. By October 6, 2023, the University will update its Faculty Handbook to remind faculty that they are obligated to provide all academic adjustments for students with disabilities that are approved by Student Accessibility Services. By July 1, 2024, the University will update its annual Nondiscrimination and Harassment Training to include a reminder to faculty of these obligations.

**REPORTING REQUIREMENT:** By October 20, 2023, the University will provide OCR with documentation that it has met the requirements of Item 1, including a copy of the written notification, a list of faculty who have signed the acknowledgement, and a link to the updated Faculty Handbook. By November 1, 2023, the University will provide OCR with a copy of the updated annual training materials.

2. By October 1, 2024, the University will assess the effectiveness of the 2023-2024 written notification and updated annual Nondiscrimination and Harassment training referenced in Item 1 by conducting surveys of the faculty who received the notification and received the annual updated training(s). The survey will specifically inquire about their knowledge about their obligation to provide all academic adjustments for students with disabilities that are approved by Student Accessibility Services. The University will promptly review the survey results and determine whether additional training is needed.

**REPORTING REQUIREMENT:** By November 1, 2024, the University will provide OCR documentation of the results of the surveys referenced in Item 2 and a description and dates of implementation of any actions the University proposes to take in response, including, if applicable, conducting additional training. By March 31, 2024, the University will provide OCR documentation of any action(s) taken as a result of the survey results.

## CONTROLLED UNCLASSIFIED INFORMATION

3. By October 6, 2023, the University's Student Accessibility Services (SAS) office will revise its template for letters of accommodations to remove all language that indicates that instructors are not required to provide extra time on exams administered through external sites.

**REPORTING REQUIREMENT:** By October 20, 2023, the University will provide OCR with a copy of the revised template letter of accommodations granting the academic adjustment of extra time for assessments.

4. By November 10, 2023, the University will review and revise as necessary its practices, information on its website, and its Student Handbook related to academic adjustments so as not to categorically exclude group activities from academic adjustments and to ensure that it makes individualized assessments for students related to academic adjustments, even when they may impact a student's obligations related to group work for a course. The University will communicate this in writing to all individuals involved in decisions whether to grant requested academic adjustments.

**REPORTING REQUIREMENT:** By November 17, 2023, the University will provide OCR with documentation that it has met the requirements of Item 4, including a copy of the notice(s) sent to personnel regarding revision to University practices, and, if applicable, copies of any revisions to the University's website and/or Student Handbook.

5. By November 10, 2023, the University will offer Student A the opportunity to retake her five quizzes from her Survey of Mathematics course (MM150) with double time compared to what was provided other students. If Student A accepts the offer and retakes the quizzes, the University will recalculate Student A's grade to reflect the highest grade she received on each quiz and, if applicable, will update her transcript.

**REPORTING REQUIREMENT:** By November 17, 2023, the University will provide OCR with a copy of the offer and Student A's response. By January 31, 2024, if Student A accepts the offer, the University will document that it allowed Student A to retake the five quizzes with double time and will provide documentation that it has recalculated Student A's grade and updated her transcript.

6. By October 6, 2023, the University will reevaluate Student A's February 2023 request for academic adjustments on her discussion board assignments in her College Composition II course (CM220). If the University determines that Student A should have been provided with academic adjustments or modifications related to her disability for her discussion board assignments, the University will recalculate her CM220 grade to exclude from her grade any failure to complete these assignments and update her transcript to reflect the new grade.

## CONTROLLED UNCLASSIFIED INFORMATION

**REPORTING REQUIREMENT:** By October 20, 2023, the University will provide OCR with documentation that it has re-evaluated Student A's request and will provide documentation of the reason(s) for its decision. If applicable, the University will also document that it has updated Student A's grade and her transcript.

The University understands that by signing this Agreement, it agrees to provide data and other information in a timely manner in accordance with the reporting requirements of this Agreement. During the monitoring of this Agreement, if necessary, OCR may visit the University, interview staff and students, and request such additional reports or data as are necessary for OCR to determine whether the University has fulfilled the terms of this Agreement.

The University understands that OCR will not close the monitoring of this Agreement until such time as OCR determines that the University is in compliance with the terms of this Agreement and Section 504, 29 U.S.C. § 794, and its implementing regulation, at 34 C.F.R. Part 104, and Title II, 42 U.S.C. §§ 12131– 12134, and its implementing regulation, at 28 C.F.R. Part 35, which were at issue in this case.

The University understands that OCR may initiate administrative enforcement proceedings or refer the case to the Department of Justice (DOJ) for judicial proceedings in the event of a breach. Before initiating such proceedings, OCR will give the University written notice of the alleged breach and sixty (60) calendar days to cure the alleged breach.

Approved and agreed to and on behalf of the University:

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[redacted content] of Purdue Global

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Date